

About Liability Determination Standard (LDS)

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What Is the Liability Determination Standard?

The Liability Determination Standard (LDS) is the LIGA™ Parent Standard governing the methodological determination of whether Liability attaches within an established Liability structure.

It is the point at which the upstream Liability inquiry moves from potential Liability to an explicit governed Liability Determination State.

Before LDS, LIGA™ establishes the context, the Liability Object, the applicable Liability Basis, the relevant Subjects and Relationships, the required Conditions, and the Liability-Relevant Connection structure.

LDS brings those governed elements together and asks whether they are sufficient to establish Liability within the defined Determination scope.

Potential Liability ≠ Attached Liability.

Canonical Meaning

LDS governs the transition:

Potential Liability → Qualified Determination Inputs → Determination Evaluation → Liability Attachment Determination → Liability Determination State Its central methodological distinction is:

Liability Basis ≠ Liability Attachment ≠ Liability Determination State.

A Liability Basis explains why Liability may potentially exist.

Liability Conditions establish what must be true under that Basis.

Liability Connection establishes how the relevant Subjects, Objects, Conditions, conduct, events, states, and consequences are connected for Liability evaluation.

LDS determines what that governed structure establishes for Liability.

Core Question

Can Liability legitimately attach and be determined to exist on the established governed basis?

What Does LDS Govern?

LDS governs the methodological structure required to determine whether Liability attaches.

This includes:

Determination Object, Determination Scope, Determination Inputs, applicable Liability Basis, relevant Liability Subjects and Relationships, applicable Liability Conditions, Governed Liability Connection Structure, Determination Criteria, Determination Evaluation, Liability Attachment, Determination States, Determination Rationale, Determination Traceability, Determination Timing, Determination Authority references, uncertainty, conflicting inputs, correction, reassessment, versioning, re-entry, and historical continuity.

Its principal output is:

Governed Liability Determination State

What Does LDS Not Govern?

LDS does not determine jurisdiction-specific legal Liability and does not replace:

courts, regulators, arbitrators, insurers, contractual authorities, administrative bodies, or other competent decision-makers.

It also does not govern:

Liability Scope, Liability Allocation, ongoing Liability State & Change, Liability Transfer, Liability Sharing, Recourse, Liability Resolution, Discharge, Liability Continuity, or Liability Finality.

These belong to later LIGA™ governance spaces.

Why Is LDS Necessary?

Liability is often inferred too early.

An adverse event occurs.

Harm exists.

A contractual duty exists.

A Subject had control.

A person was responsible.

Evidence identifies conduct.

A causal sequence is established.

A Claim is submitted.

None of those facts independently answers whether Liability attaches.

Without a distinct Determination layer, governance can collapse:

Harm into Liability, Responsibility into Liability, Fault into Liability, Breach into Liability, Control into Liability, Causation into Liability, or a Claim into Liability.

LDS prevents that collapse.

Why Is Liability Determination Different from Liability Basis?

Liability Basis asks:

On what governed basis can Liability potentially exist?

Liability Determination asks:

Does Liability actually attach under that Basis within the established governed structure?

Therefore:

Liability Basis ≠ Liability Determination.

A valid Basis may exist while Liability ultimately does not attach.

Why Are Conditions Not Enough?

Conditions determine what must:

exist, fail, change, be satisfied, or otherwise hold under the applicable Liability Basis.

Even when the relevant Conditions are satisfied, LDS must still evaluate the complete governed Liability structure.

Therefore:

Satisfied Liability Conditions ≠ Liability Attachment.

Why Is Connection Not Enough?

LCNS establishes the governed Liability-Relevant Connection structure.

It identifies how relevant Subjects, Objects, Conditions, conduct, events, states, consequences, and other inputs connect.

A Connection may be fully governed and qualified without itself establishing Liability.

Therefore:

Qualified Liability Connection ≠ Liability Determination.

Connection makes Liability determinable.

LDS performs the Determination.

Position in the LIGA™ Lifecycle

The canonical LIGA™ Governance Flow is:

Liability Context → Liability Object → Liability Basis → Liability Relationships → Liability Conditions → Liability Connection → Liability Determination → Liability Scope & Allocation → Liability State & Change → Liability Transfer & Recourse → Liability Resolution & Discharge → Liability Continuity & Finality LDS occupies the seventh governance space:

Liability Determination

Its immediate upstream input is:

Governed Liability Connection Structure

Its principal output is:

Governed Liability Determination State

Its downstream handoff is:

Governed Liability Determination State → Liability Scope & Allocation Governance

From Potential Liability to Attached Liability

Before LDS, Liability remains potential.

The existence of:

a Liability Object, a valid Basis, relevant Subjects, applicable Conditions, or a qualified Connection does not independently create Attached Liability.

LDS governs the transition from that potential structure to an explicit Attachment determination.

Therefore:

Potential Liability ≠ Attached Liability.

Liability Attachment

Liability Attachment is the governed determination that Liability has become sufficiently established in relation to the applicable Subject or Liability Relationship under the defined Basis and governed inputs.

Attachment belongs inside LDS.

It does not require a separate LIGA™ Parent Standard.

The canonical progression is:

Potential Liability → Determination Evaluation → Liability Attachment Determination → Liability Determination

State

Determination States

LDS allows Liability Determination to remain explicit even where the answer is not simply positive or negative.

A Determination may be represented as:

Attached

Not Attached

Partially Determined

Pending

Unknown

Uncertain

Disputed

These states prevent unresolved matters from being forced into false binary conclusions.

Attached Does Not Mean Fully Scoped

An Attached state means Liability has been determined to exist within the defined Determination scope.

It does not determine the full extent of that Liability.

Therefore:

Liability Attachment $\neq$ Liability Scope.

Scope belongs to the next LIGA™ Parent Standard.

Attached Does Not Mean Allocated

Where several Subjects or Relationships exist, determining that Liability attaches does not establish how Liability should be distributed.

Therefore:

Liability Attachment $\neq$ Liability Allocation.

Allocation also belongs downstream to LSAS.

Multi-Subject Liability

A single occurrence may involve:

multiple Subjects, multiple Relationships, multiple Liability Bases, multiple Connections, and multiple Liability Determination States.

LDS does not force these into one universal conclusion.

A Subject may receive an Attached state while another remains:

Not Attached, Pending, Unknown, Uncertain, or Disputed.

Therefore:

Shared Event $\neq$ Shared Liability Determination.

Liability Networks

A complex matter may create a network of distinct Liability Relationships rather than a single Liability Relationship.

LDS preserves that structure.

One local Determination does not automatically determine the entire Liability Network.

Therefore:

Local Liability Determination $\neq$ Complete Liability Network Determination.

Harm and Liability Determination

HAGA™ governs Harm.

LDS governs Liability Determination.

Harm may be an important input where the applicable Liability Basis requires it.

But Harm does not become Liability merely because it exists.

Therefore:

Harm Determination $\neq$ Liability Determination.

Liability may also exist under structures that do not require Harm.

Operational Causation and Liability Determination

ORA™ may govern the operational mechanisms and causal sequence explaining what occurred.

That causal structure may become an important Liability input.

However:

Operational Causation ≠ Liability Determination.

A causal connection explains an operational relationship.

LDS determines whether the complete governed Liability structure establishes Attachment.

Responsibility and Accountability

AGA™ may establish Responsibility, Accountability, Authority, or Attribution.

These may become important Determination inputs.

But:

Responsibility ≠ Liability.

Accountability ≠ Liability.

LDS preserves these boundaries rather than converting adjacent governance states directly into Liability.

Evidence and Liability Determination

Evidence may support:

facts, relationships, Conditions, Connections, Harm states, operational events, or other Determination inputs.

Evidence does not itself become Liability.

Therefore:

Evidence ≠ Liability Determination.

ADIT® retains governance ownership of evidence and auditability.

LDS uses appropriately governed evidentiary structures as inputs.

Claims and Liability

A Claim is separate from Liability.

A Claim may allege Liability, request compensation, trigger investigation, or initiate another process.

It does not determine Liability.

Therefore:

Claim ≠ Liability.

Claim Acceptance ≠ Liability Determination.

Claim Rejection ≠ Absence of Liability.

Claim Payment ≠ Liability Admission.

Claims Governance should remain architecturally separate from LIGA™.

Methodological Determination vs Legal Determination

LDS establishes a methodological governance framework.

It does not claim jurisdiction-specific adjudicative authority.

A court judgment, regulatory decision, arbitral award, insurance decision, or other competent determination may become a governed external authority state within the Liability lifecycle.

LDS can structure and preserve such determinations without replacing the institution that issued them.

Therefore:

LIGA™ Determination ≠ Court Judgment.

Determination Rationale

A governed Liability Determination should not consist only of an outcome.

It should remain possible to reconstruct:

what was determined, under which Liability Basis, for which Subject, in relation to which Object, through which Relationships, under which Conditions, using which Liability Connection, with which material inputs, and with what uncertainty.

Therefore:

Determination State without Rationale ≠ Fully Governed Determination.

Determination Through Time

A Liability Determination may later be:

corrected, reassessed, superseded, reversed, or re-entered.

LDS preserves the history of these transitions.

A new current state must not erase the earlier governed state.

Therefore:

Current Determination State ≠ Complete Determination History.

Re-Entry

Later stages of the Liability lifecycle may reveal that an earlier Determination must be revisited.

LDS supports targeted re-entry.

Where the underlying problem belongs upstream, governance should return to the earliest materially affected space.

For example:

Connection defect → LCNS Condition defect → LCOS Relationship defect → LRS Basis defect → LBS Object defect → LOS Context defect → LCS The governing principle is:

Re-enter the earliest materially affected governance space.

Re-entry must preserve historical integrity.

Critical Distinctions

Potential Liability ≠ Attached Liability Liability Basis ≠ Liability Attachment Liability Basis ≠ Liability Determination State Satisfied Liability Conditions ≠ Liability Attachment Qualified Liability Connection ≠ Liability Attachment Harm ≠ Liability Harm Determination ≠ Liability Determination Operational Causation ≠ Liability Determination Responsibility ≠ Liability Accountability ≠ Liability Fault ≠ Liability Breach ≠ Liability Control ≠ Liability Claim ≠ Liability Payment ≠ Admission of Liability Settlement ≠ Admission of Liability Liability Attachment ≠ Liability Scope Liability Attachment ≠ Liability Allocation Liability Determination ≠ Liability Resolution Liability Determination ≠ Liability Finality

Use Case 1 — Autonomous System Liability Determination

An autonomous industrial system performs an action that contributes to an operational incident.

Earlier LIGA™ governance has established:

the relevant Liability Object, the applicable Liability Basis, the participating Subjects and Relationships, the applicable Liability Conditions, and a Governed Liability Connection Structure connecting the relevant system actions, operational states, Subjects, and consequences.

LDS evaluates the complete governed structure.

The existence of an autonomous-system action, operational causation, Harm, or operator control does not independently establish Liability.

LDS determines whether Liability attaches to the relevant Subject or Relationship under the applicable Basis.

The result becomes a Governed Liability Determination State.

The extent and distribution of any Attached Liability remain for LSAS.

Use Case 2 — Multi-Party Operational Incident

An operational incident involves an asset owner, operator, maintenance provider, and component producer.

The same incident produces several distinct Liability Relationships and Connection paths.

LDS evaluates each relevant Subject and Relationship separately under the applicable Liability Basis and Conditions.

One Liability relationship may receive an Attached state.

Another may be Not Attached.

A third may remain Pending because a material governed input is unresolved.

A fourth may remain Disputed.

LDS preserves these separate Determination States rather than converting the shared incident into one universal Liability conclusion.

Subsequent Scope & Allocation governance can then operate on the resulting Liability Determination structure.

Canonical Closing Statement

Liability should not be inferred merely because Harm occurred, a duty existed, a Subject exercised control, an operational causal chain was established, or evidence appears persuasive.

Those elements may make Liability determinable.

They do not perform the Determination.

LDS is the governance point at which the complete upstream Liability structure is evaluated and potential Liability may become Attached Liability.

That transition must remain explicit, bounded, reasoned, traceable, and reconstructable.

Potential Liability becomes governed Liability only through Determination.

Determine whether Liability attaches before determining how far it extends or how it is allocated.

Governed Links

Liability Determination Standard (LDS)

LIGA™ Architecture Map

LIGA™ Liability Governance Architecture — Liability Governance Layer

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